

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
SELWYN STEWART and ANNETTE STEWART,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER RYAN SCANELL,
POLICE OFFICER JAMES ST. GERMAIN and POLICE
OFFICER BRIAN VOLPI, ET AL.

Defendants.
-----X

Index No.:
Date Purchased:

SUMMONS

Plaintiff designates Queens
County as the place of trial.

The basis of venue is:
Plaintiff's Residence

Plaintiff resides at:
109-33 175th Street
Jamaica, New York 11433

County of Queens

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York
December 18, 2015



GREG PATRIC MARTELLO, ESQ.
MARTELLO & LAMAGNA P. C.
Attorneys for Plaintiffs
SELWYN STEWART
& ANNETTE STEWART
666 Old Country Road, Suite 210
Garden City, New York 11530
(516) 228-3333
Our File No. 14-0013

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007-2341

NEW YORK CITY
POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER
RYAN SCANELL
New York City Police Department
113th Precinct
167-02 Baisley Boulevard
Jamaica, New York 11434

POLICE OFFICER
JAMES ST. GERMAIN
New York City Police Department
113th Precinct
167-02 Baisley Boulevard
Jamaica, New York 11434

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**VERIFIED
COMPLAINT**

Plaintiff, by his attorneys, **MARTELLO & LAMAGNA P. C.**, complaining of the
Defendants, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. Upon information and belief, that at all times hereinafter mentioned, the defendant
THE CITY OF NEW YORK was and still is a municipal corporation duly organized and existing
under and by virtue of the laws of the State of New York.

2. Upon information and belief, that at all times hereinafter mentioned, the defendant
THE CITY OF NEW YORK, its agents, servants and employees operated, maintained and controlled
the Police Department of the City of New York, including all the police officers thereof.

3. Upon information and belief, at all times hereinafter mentioned, and on or prior to the
October 8, 2014, POLICE OFFICER RYAN SCANELL (hereinafter referred to as "P.O.
SCANELL"), POLICE OFFICER JAMES ST. GERMAIN (hereinafter referred to as "P.O. ST.
GERMAIN") and POLICE OFFICER BRIAN VOLPI (hereinafter referred to as "P.O. VOLPI"), of
the 113th Precinct, was employed by the defendants, THE CITY OF NEW YORK and NEW YORK
CITY POLICE DEPARTMENT, as police officers.

4. That Notice of Plaintiff's Claim and Notice of Intention To Sue for Damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon Comptroller of the defendant CITY OF NEW YORK on or about the January 14, 2015.

5. That more than 30 days have elapsed since the Notice of Claim and Intention to Sue has been served upon the defendants and the said defendants have neglected or refused to make an adjustment or payment thereof.

6. That this action is commenced within one year and ninety (90) days after the cause of action arose.

7. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 6 with the same force and effects as if more fully set forth herein.

8. That on or about the October 8, 2014 at or about approximately 12:30 a.m. of that day, on the public roadway / sidewalk, in front of, contiguous to and adjacent to Hempstead Turnpike at or near Meacham Avenue, in the vicinity of Elmont, County of Nassau, State of New York, the defendants, their agents, servants and employees wrongfully and falsely arrested, assaulted, imprisoned and detained plaintiff, SELWYN STEWART, without any rights or grounds thereof.

9. That on or about the October 8, 2014, the defendants wrongfully and falsely accused the plaintiff, SELWYN STEWART, of the crime of Reckless Driving, an Unclassified Misdemeanor in violation of §1212 of the Vehicle Traffic Law; Failure to Stop: Stop Sign, an Infraction in violation of §1172(A) of the Vehicle Traffic Law; Failure to Obey Traffic Device, an Infraction in violation of §1110(A) of the Vehicle Traffic Law; Speed Violation: Imprudent Speed, an Infraction in violation of §1180(A) of the Vehicle Traffic Law; Criminal Mischief: Intent to Damage Property, a Class A Misdemeanor in violation of §145(1) of the Penal Law; Reckless Endangerment in the 2nd Degree, a Class A Misdemeanor in violation of §120.20 of the Penal Law, 2 counts of Assault with Intent to Cause Physical Injury, a Class A Misdemeanor in violation of §120 of the Penal Law; 2 counts of Assault with Intent to Cause Physical Injury, a Class A Misdemeanor in violation of

§120(1) of the Penal Law; 2 counts of Assault in the 2nd Degree with Intent to Cause Physical Injury to Officer, a Class D Felony in violation of §120.05(3) of the Penal Law; and 2 counts of Assault in the 2nd Degree with Intent to Cause Physical Injury to Officer, a Class D Felony in violation of §120.05(3) of the Penal Law.

10. That the said arrest and imprisonment was caused by the defendants, their agents, servants and employees, without any warrant or other legal process and without authority of law and without any reasonable cause or belief that the plaintiff, SELWYN STEWART, was in fact guilty of such crimes.

11. That on the aforesaid date, time and place, the plaintiff, who was lawfully and properly driving, was detained and viciously assaulted by defendants P.O. SCANELL, P.O. ST. GERMAIN and P.O. BRIAN VOLPI.

12. While the plaintiff was so engaged, as aforesaid, the defendants, their agents, servants and employees, wrongfully and unlawfully, against the plaintiff's wish, without probable or reasonable cause, pulled Plaintiff's car over and falsely accused Plaintiff of violating various laws, arrested and imprisoned the plaintiff and with full force and arms, they forcibly and violently seized, assaulted and laid hold of and compelled him to go with the said defendant police officers to be detained at the 113th Precinct located on 167-02 Baisley Boulevard, in the County of Queens, State of New York and continuing to other divers, places and times, including, but not limited to, Central Booking located at 125-01 Queens Boulevard, in the County of Queens, where the plaintiff was further detained and imprisoned until such time as he was arraigned before Criminal Court Judge Deborah Modica on October 9, 2014.

13. On October 8, 2014, while Plaintiff was lawfully present at the aforesaid location, he was caused to be negligently, intentionally, wrongfully, willfully, maliciously and with gross negligence, physically detained, assaulted, beaten, battered and falsely arrested by Defendants NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK, P.O. SCANELL, P.O. ST. GERMAIN and P.O. BRIAN VOLPI and was caused to sustain severe and permanent injuries.

14. That the defendants, their agents, servants, and employees acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff even though the defendants, their agents, servants and employees, had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be searched and placed in confinement at said locations.

15. That the plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and employees and was forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

16. That as a result of the aforesaid accusations made by the defendants, their agents, servant and employees acting under their employments and within the scope of their authority, made falsely, publicly, wickedly and maliciously, the plaintiff was compelled to appear before a Judge of the Criminal Court of the City of New York, New York County and to be arraigned on or about the October 9, 2014 before Judge Deborah Modica in AP1 Part.

17. That the defendants, their agents, servants and employees, as set forth aforesaid on the aforementioned date, time and place, intended to confine the plaintiff; in that the plaintiff was conscious of confinement; plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

18. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities; humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs, schooling and business, and he was caused to suffer much pain in both mind and body, damage to his reputation in the community, the loss of employment and the loss of employment opportunities.

19. That as a result of the foregoing, Plaintiff SELWYN STEWART was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF

20. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 19, with the same force and effect as if more fully and at length set forth herein.

21. That on or about the October 8, 2014 at or about approximately 12:30 a.m. of that day, on the public roadway / sidewalk, in front of, contiguous to and adjacent to Hempstead Turnpike at or near Meacham Avenue, in the vicinity of Elmont, County of Nassau, State of New York, the defendants, their agents, servants and employees, particularly defendants P.O. SCANELL, P.O. ST. GERMAIN and P.O. BRIAN VOLPI, without just cause or provocation and with great force and violence, violently seized, assaulted and laid hold of the plaintiff, SELWYN STEWART, including but not limited to intentionally, unjustifiably, forcefully and fiercely strike plaintiff about his face, head, ribs and other body parts.

22. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, willfully and maliciously assaulted and battered plaintiff, SELWYN STEWART, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and defendants, in a hostile and/or offensive manner touched and beat the plaintiff, without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such batter in and about his face, head, neck, back, body and limbs.

23. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority, and without probable or reasonable cause, the plaintiff suffered great bodily injury in and about his head,

neck, back and body limbs and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering, and that he was otherwise damaged.

24. That by reason of the aforesaid, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked FIRST through TWENTY-THIRD with the same force and effect as if more fully and at length set forth herein.

26. Defendants P.O. SCANELL, P.O. ST. GERMAIN and P.O. BRIAN VOLPI together with persons unknown to plaintiff including other Police Officers without just cause or provocation had maliciously embarked on conduct intended to cause plaintiff, SELWYN STEWART to suffer great mental and emotional distress, tension, anxiety, pain and humiliation in order to demean plaintiff as a person and to induce him to submit to their demands including but not limited to demanding that he sign a false statement.

27. As a result of defendants conduct, plaintiff SELWYN STEWART has become tense, nervous, irritable, suffered great mental and emotional anguish, anxiety, loss of sleep, loss of weight and other psychological and physical injuries.

28. That by reasons if the aforesaid, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

29. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully and at length set forth herein.

30. Defendants P.O. SCANELL, P.O. ST. GERMAIN and P.O. BRIAN VOLPI together with persons unknown to plaintiff including other Police Officers without just cause or provocation

had negligently embarked on conduct which caused plaintiff, SELWYN STEWART to suffer great mental and emotional distress, tension, anxiety, pain and humiliation.

31. As a result of defendants conduct, plaintiff SELWYN STEWART has become tense, nervous, irritable, suffered great mental and emotional anguish, anxiety, loss of sleep, loss of weight and other psychological and physical injuries.

32. That by reasons if the aforesaid, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully and at length set forth herein.

34. That the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, were careless and reckless in hiring and retaining as and for its employee, the above named individuals: in that the said defendant employees lacked the experience, deportment and ability to be employed by the defendant: in that the defendant failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as an employees of the aforementioned defendant; in that the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, failed to investigate the above named defendant's background and in that they hired and retained as an employees of their police department individuals who lacked the maturity, sensibility and intelligence to be employed by the defendant; in that the defendant knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

35. That the aforesaid occurrence, to wit; the false arrest and imprisonment, assault and battery, intentional and negligent infliction of emotional distress and the resulting injuries to mind

and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants, and employees without any negligence on the part of the plaintiff.

36. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation and schooling and will, upon information and belief, be so incapacitated in the future and he had expended and incurred divers sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees including counsel fees and disbursements, and; upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

37. That by reason of the aforesaid, the plaintiff has been damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

38. Plaintiff repeats, reiterates and realleges cacti and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully and at length set forth herein.

39. That the defendants, their agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the named defendants, P.O. SCANELL, P.O. ST. GERMAIN and P.O. BRIAN VOLPI, in that they failed to train their employees in the proper use of weapons and Firearms; in the proper manner in which to handle and control and have physical contact with civilians, to make arrests, to distinguish between guilty and innocent behavior; in the proper method of interrogation, to control their tempers and exercise the proper deportment and temperament; and to otherwise act as reasonably, prudent police officers; failed to give them proper instructions as to their deportment, behavior and conduct as

representatives of their employees; and, in that the defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

40. That the aforesaid occurrence, to wit; the false arrest and imprisonment, assault and battery, negligent and intentional infliction of emotional distress, negligent training, hiring and supervising of Police Personnel and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

41. That by reason of the aforesaid, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

42. Plaintiff repeats, reiterates and realleges cacti and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth herein.

43. That the defendants, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances in that they carelessly, recklessly and negligently arrested the plaintiff without making a proper investigation, in that they were negligent, careless and reckless in the manner in which they effectuated the arrest; that the defendants, their agents, servants and employees negligently, carelessly and recklessly without provocation and with great force and violence; negligently struck the plaintiff; negligently, carelessly and recklessly used the threat of physical force and actually used physical force upon the plaintiff thereat; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

44. That the aforesaid occurrence, to wit; the false arrest and imprisonment, assault and battery, negligent and intentional infliction of emotional distress, negligent hiring, training and supervising of Police Personnel employees and the resulting injuries to mind and body therefrom,

were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

45. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue great physical and mental pain, and he was rendered sick, sore, lame, and disabled and so remains, and he was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction, and plaintiff has been otherwise damaged.

46. That by reason of the aforesaid, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A EIGHTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

47. Plaintiff repeats, reiterates and realleges cacti and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully and at length set forth herein.

48. That on or about the October 8, 2014, at or about approximately 12:30 a.m. of that day, on the public roadway / sidewalk, in front of, contiguous to and adjacent to Hempstead Turnpike at or near Meacham Avenue, in the vicinity of Elmont, County of Nassau, State of New York, and at subsequent times thereafter, including but not limited to the 113th Precinct, Central Booking and a detention cell at the Criminal Courts Building located at 125-01 Queens Boulevard, Kew Gardens, New York, the defendants, their agents, servants and employees maliciously prosecuted and detained plaintiff, without any just right or grounds therefor.

49. That the plaintiff was and is wholly innocent, and was forced by the defendant to submit to court proceedings.

50. That on or about the October 9, 2014, before the Hon. Modica, a Judge of the Criminal Court of the City of Queens, in API Part, the defendants, their agents, servants and employees falsely and maliciously and without probable cause or provocation charged the plaintiff with the crime of Reckless Driving, an Unclassified Misdemeanor in violation of §1212 of the Vehicle Traffic Law; Failure to Stop: Stop Sign, an Infraction in violation of §1172(A) of the Vehicle Traffic Law; Failure to Obey Traffic Device, an Infraction in violation of §1110(A) of the Vehicle Traffic Law; Speed Violation: Imprudent Speed, an Infraction in violation of §1180(A) of the Vehicle Traffic Law; Criminal Mischief: Intent to Damage Property, a Class A Misdemeanor in violation of §145(1) of the Penal Law; Reckless Endangerment in the 2nd Degree, a Class A Misdemeanor in violation of §120.20 of the Penal Law, 2 counts of Assault with Intent to Cause Physical Injury, a Class A Misdemeanor in violation of §120 of the Penal Law; 2 counts of Assault with Intent to Cause Physical Injury, a Class A Misdemeanor in violation of §120(1) of the Penal Law; 2 counts of Assault in the 2nd Degree with Intent to Cause Physical Injury to Officer, a Class D Felony in violation of §120.05(3) of the Penal Law; and 2 counts of Assault in the 2nd Degree with Intent to Cause Physical Injury to Officer, a Class D Felony in violation of §120.05(3) of the Penal Law.

51. That the defendants, their agents, servants and employees acting in the performance of their employment and within the scope of their authority, testified falsely by submitting corroboratory affidavits with false information and withheld vital information before a Judge of the Criminal Court of the State of New York, in the County of New York.

52. That by reason of the aforesaid unlawful and malicious prosecution, intentional and negligent infliction of emotional distress, negligent training, hiring, supervising of Police Personnel, negligent performance of duties, false arrest, false imprisonment and assault and battery the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, paid and great distress of mind and body and was held up to scorn and ridicule, was injured in his character endways

reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the plaintiff has been otherwise damaged.

53. That by reason of the aforesaid, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully and at length set forth herein.

55. That on or about October 8, 2014 at approximately 12:30 a.m. of that day, plaintiff SELWYN STEWART, was lawfully and properly at or near, in front of, contiguous to and adjacent to Hempstead Turnpike, in the vicinity of Elmont at or near Meacham Avenue, County of Nassau, State of New York, more particularly on the public roadway / sidewalk thereat, at which time and place defendants then and were at as part of their regular and official employment as police officers for the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

56. As plaintiff was lawfully and properly thereat, the aforementioned police officer who, having the real and apparent ability to cause imminent harmful and offensive bodily contact and the power and authority to arrest and imprison the plaintiff did so threaten these acts upon the plaintiff, who, after continuing his lawful activity, was violently struck repeatedly by the defendants, P.O. SCANELL, P.O. ST. GERMAIN and P.O. BRIAN VOLPI of the 113th Precinct.

57. Immediately thereafter, aforementioned defendants, their agents, servants and employees falsely arrested and imprisoned the plaintiff, severely assaulted and battered the plaintiff and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of New York, handcuffed him and threatened plaintiff with the possible use of firearms and weapons and the use of physical force; in that they continued to assault and batter the plaintiff and to imprison him without any conduct on the part of the plaintiff to so warrant to wit;

a) in that all of the actions of the defendants, their agents, servants and employees, were committed with the intention to cause bodily and mental injury to the plaintiff, to arrest, restrain and imprison the plaintiff without his consent, the plaintiff was at all times conscious of his arrest and imprisonment, were not otherwise privileged; and,

b) the arrest and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York. and under the authority of their office as police officers for said City, falsely charged the plaintiff with violating the crime of Reckless Driving, an Unclassified Misdemeanor in violation of §1212 of the Vehicle Traffic Law; Failure to Stop: Stop Sign, an Infraction in violation of §1172(A) of the Vehicle Traffic Law; Failure to Obey Traffic Device, an Infraction in violation of §1110(A) of the Vehicle Traffic Law; Speed Violation: Imprudent Speed, an Infraction in violation of §1180(A) of the Vehicle Traffic Law; Criminal Mischief: Intent to Damage Property, a Class A Misdemeanor in violation of §145(1) of the Penal Law; Reckless Endangerment in the 2nd Degree, a Class A Misdemeanor in violation of §120.20 of the Penal Law, 2 counts of Assault with Intent to Cause Physical Injury, a Class A Misdemeanor in violation of §120 of the Penal Law; 2 counts of Assault with Intent to Cause Physical Injury, a Class A Misdemeanor in violation of §120(1) of the Penal Law; 2 counts of Assault in the 2nd Degree with Intent to Cause Physical Injury to Officer, a Class D Felony in violation of §120.05(3) of the Penal Law; and 2 counts of Assault in the 2nd Degree with Intent to Cause Physical Injury to Officer, a Class D Felony in violation of §120.05(3) of the Penal Law. Although the defendants, acting in such capacity, knew that such charges were false; and,

c) in that the defendants, their agents, servants and employees caused assault and battery when they in a hostile and/or offensive manner threatened, touched and beat the plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff, all without warrant, probable cause or any lawful cause whatsoever; and,

d) that the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the

behavior and performance of the defendants, their agents, servants and employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public including plaintiff; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants; and,

e) the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions; in that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the State and City of New York including plaintiff; and,

f) due to the acts of the defendants, their agents, servants and employees herein, the failure of the City of New York to discipline and properly hire the defendants and the continued employment of the defendants presents a clear and present danger to the citizens of the City and State of New York; and,

g) that the said prosecution and criminal charges and hearings were instituted and procured by the defendant, their agents, servants and employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause with actual malice and was terminated in favor of the plaintiff; and,

h) that the defendants, their agents, servants and employees permitted the use of policy and/or drafted policy that was violative of the constitutional rights of the above named plaintiff; and, in that each and all of the acts of the defendants, their agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Queens, and under the authority of their office as police officers for said city and county.

58. Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, maliciously prosecuted and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. § 1983 and the Constitution of the State of New York.

59. As a direct result of the illegal actions and conduct on the part of the defendants, their agents, servants and employees, plaintiff was falsely arrested and imprisoned, assaulted and battered, maliciously prosecuted and compelled to be arraigned and appear in Criminal Court in the City of New York, County of Queens and to undergo further criminal proceedings.

60. That at all times hereinafter mentioned, the defendants were employed in their respective capacities by the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

61. That at all times hereinafter mentioned, defendant, P.O. SCANELL, P.O. ST. GERMAIN and P.O. BRIAN VOLPI, of the 113th Precinct, was acting pursuant to orders and directives from defendant.

62. That during all times hereafter mentioned, the defendant police officers and each of them, separately, and in concert, acted under color and pretense of law, to wit; under color of the statutes, ordinances, regulations, customs and usages of The City of New York and the defendants here, separately and in concert, engaged in the illegal conduct here mentioned to the injury of the plaintiff, SELWYN STEWART, and deprived plaintiff of the rights, privileges and immunities secured to plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the laws of the United States and the New York State constitutional laws.

63. The Police Officers of the defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and its individual members who are agents, servants and employees of defendants, together with persons unknown to plaintiff, including other Police Officers acting

under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of illegal harassment, assault and battery, false imprisonments and arrests and malicious prosecution at the time said persons are lawfully and properly on the public roadways in the County of Nassau, State of New York, in denial of rights, privileges and immunities guaranteed plaintiff, SELWYN STEWART and other citizens by the Constitution of the United States and New York State constitutional laws.

64. This systematic pattern of conduct consists of a large number of individual acts of violence, intimidation, false arrest and false imprisonment and malicious prosecution visited on plaintiff, SELWYN STEWART, and other citizens by members of the police department of defendant, P.O. SCANELL, P.O. ST. GERMAIN and P.O. BRIAN VOLPI, acting in concert with persons unknown to plaintiff including other Police Officers and under color of law and said acts, while carried out under color law, have no justification or excuse in law and are instead illegal, improper and related to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuing civil order.

65. Upon information and belief, this pattern of conduct visited on SELWYN STEWART and other citizens by members of the Police Department of the defendant and P.O. SCANELL, P.O. ST. GERMAIN and P.O. BRIAN VOLPI, acting in concert with persons unknown to plaintiff including other Police Officers and under color law and said were actually motivated in part by malice and in part caused by negligence.

66. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and employees, the defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever any of their employees or agents.

67. The unlawful and illegal conduct of the defendants, their agents, servants and employees and each of them deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York.

a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

b) The right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to Constitution of the United States; and,

c) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

d) The right of plaintiff not to be deprived of due process of Law and equal protection of the law.

68. That by reason of the aforesaid violation, false arrest and false imprisonment, assault and battery and malicious prosecution, intentional and negligent infliction of emotional distress, negligent training, hiring, supervising of Police Personnel, negligent performance of duties caused, by the defendants, their agents, servants and employees who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendants, their agents, servants and employees violated 42 U.S.C. § 1983 in that the defendants, their agents, servants and employees acted as persons who under color of any statute, ordinance, regulation, custom or usage of the City of New York. subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the plaintiff, SELWYN STEWART, thereof to be deprived of his rights, privileges of immunities received by the Constitution and laws of the United

States of America and of the State of New York; was subjected the great indignities and humiliation, and paid and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community with the aim of injuring and damaging plaintiff.

69. That by reason of the aforesaid intentional assault and battery, the false arrest and false imprisonment, malicious prosecution, intentional and negligent infliction of emotional distress, negligent training, hiring, supervising of Police Personnel, negligent performance of duties and deprivation of his rights and liberties as guaranteed by the aforementioned constitutions, by the defendants, their agents, servants and employees, acting within the scope of their authority, and without any probable or reasonable cause, the plaintiff suffered great bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering, and that he was otherwise damaged.

70. That by reason of the aforesaid, the plaintiff requests the following relief:

- a) Compensatory damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.
- b) Punitive damages in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS;
- c) An award of reasonable attorney's fees, costs and disbursements;
- d) Plaintiff requests a trial by jury of all issues involved in this complaint;
- e) Such other and further relief as this court may deem just, and proper under the circumstances.

AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

71. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully and at length set forth herein.

72. That by reason of the aforesaid false arrest and imprisonment, vicious assault and battery and malicious prosecution, intentional infliction of emotional distress, caused willfully and maliciously by the defendants, their agents, servants and employees, the plaintiff was wrongfully

deprived of his rights, privileges and benefits as provided to him under the Constitution of the United States of America and the Constitution of the State of New York discriminated against plaintiff sustained severe, serious and upon information and belief permanent injuries to his head, neck, back, body limbs, was rendered sick, core, lame, disabled and confined to bed and home and he was subjected to great indignities and humiliation, and pain and distress of mind and body, and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business advocacy, injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the plaintiff.

73. That by reason of the aforesaid, plaintiff demands punitive damages in the amount of FIVE MILLION (\$5,000,000.00) DOLLARS.

AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

74. Plaintiff ANNETTE STEWART repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

75. That at all times hereinafter mentioned, Plaintiff ANNETTE STEWART was the spouse of the Plaintiff SELWYN STEWART and as such was entitled to the society, services and consortium of her spouse, SELWYN STEWART.

76. That by reason of the foregoing, Plaintiff ANNETTE STEWART was deprived of the society, services and consortium of the Plaintiff SELWYN STEWART and shall forever be deprived of said society, services and consortium.

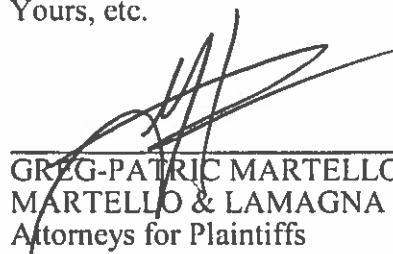
77. That by reason of the foregoing, Plaintiff ANNETTE STEWART was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction., on the First Cause of Action; a sum which exceeds the jurisdictional limits of all lower courts which would

otherwise have jurisdiction on the Second Cause of Action; a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction on the Third Cause of Action; a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction on the Fourth Cause of Action; a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction on the Fifth Cause of Action; a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction on the Sixth Cause of Action a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction as and for Compensatory Damages, a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction as and for Punitive Damages, and reasonable attorney's fees on the Seventh Cause of Action; FIVE MILLION (\$5,000,000.00) DOLLARS as and for Punitive Damages of the Eighth Cause of Action; and a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction on the Eleventh Cause of Action; together with the interest, costs and disbursements of this action.

Dated: Garden City, New York
December 18, 2015

Yours, etc.



GREG-PATRIC MARTELLO, ESQ.
MARTELLO & LAMAGNA P. C.
Attorneys for Plaintiffs
SELWYN STEWART
& ANNETTE STEWART
666 Old Country Road, Suite 210
Garden City, New York 11530
(516) 228-3333

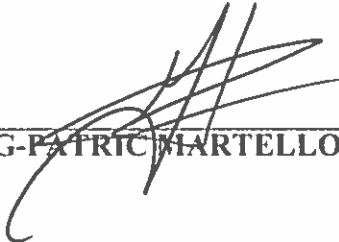
ATTORNEY'S VERIFICATION

GREG-PATRIC MARTELLO, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury I am an attorney at **MARTELLO & LAMAGNA P. C.**, attorneys of record for Plaintiffs.

I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the county wherein I maintain my offices.

Dated: Garden City, New York
December 18, 2015



GREG-PATRIC MARTELLO, ESQ.

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

SELWYN STEWART and ANNETTE STEWART,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER RYAN SCANELL, POLICE OFFICER JAMES ST. GERMAIN and POLICE
OFFICER BRIAN VOLPI, ET AL.

Defendants.

SUMMONS & VERIFIED COMPLAINT

MARTELLO & LAMAGNA P. C.
Attorneys for Plaintiff
666 Old Country Road, Suite 210
Garden City, New York 11530
(516) 228-3333

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

TO

Attorney(s) for

Service of a copy of the within

is hereby admitted

Dated

Attorney(s) for Plaintiff


GREG-PATRICK MARTELLO, ESQ.

Sir: Please take notice

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a _____ duly entered in the office of the clerk of the within named court on _____ 2015

☐ NOTICE OF SETTLEMENT

that an order _____ of which the within is a true copy will be presented for _____ settlement to the HON. _____ one of the judges

of the within named Court, at _____ on the _____ day of _____ 2015 at _____ M

Dated,

To

Attorney(s) for

Yours, etc
MARTELLO & LAMAGNA, P.C.
Attorneys for Plaintiff
666 OLD COUNTRY ROAD, SUITE 210
GARDEN CITY, NEW YORK 11530
TELEPHONE: (516) 228-3333
TELECOPIER: (516) 228-3339